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Counterfactual Mandate After Stay Denial

Filed: July 17, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Judgment was entered on June 8, 2026. The fourteen-day period for rehearing ended June 22 without a petition, producing an ordinary mandate date of June 29. Before that date, Asterglen filed a motion seeking to stay mandate during preparation of a certiorari petition. The Court denied the motion on July 10 and entered an order applying the later-of requirement in Federal Rule of Appellate Procedure 41(b).

The denial generated a July 17 date, seven calendar days after entry. July 17 is later than the June 29 no-motion date. The clerk has today entered an order releasing mandate, and no affirmative stay or superseding direction remains on the docket. Accordingly, the Court's June 8 opinion and judgment are issued as mandate on July 17, 2026.

The requested stay was not granted, but the denial remained a timing event specified by Rule 41(b). Issuance today honors that event rather than treating the June 26 motion as though it had never been filed. The clerk now transmits the controlling appellate disposition without amendment.

Judgment carried into effect

The appeal by Asterglen Freight Software, Inc. is DISMISSED, and the matter is REMANDED. The district court's February 4 certification order granted Rule 54(b) relief without expressly determining that there was no just reason for delay. With Count II and Copper Kestrel's counterclaim still pending, the Court concluded that it lacked a properly certified partial judgment for immediate review.

The mandate leaves the district court's January 12 dismissal of Count I with prejudice in place. It neither affirms nor reverses the reasoning concerning the written-notice and fifteen-calendar-day cure provision, and it does not adjudicate Asterglen's \$480,000 demand. The interference claim against Meridian Silt, Copper Kestrel's \$120,000 counterclaim, overlapping facts, and any potential setoff remain matters for the district court.

Each side bears its own appellate costs as directed in the judgment under Federal Rule of Appellate Procedure 39(a)(1). Certified copies of this mandate, the June 8 opinion and judgment, the July 10 stay-denial order, and the July 17 release order shall be sent to the district clerk. Service shall be made on appellate counsel. Any later certiorari filing proceeds subject to the rules governing review after mandate; this document expresses no view about such a filing.

ISSUED BY THE CLERK OF COURT